

Networked Power? How Human Rights Treaty Bodies shape Discourses through Non-binding Law-making.

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This paper is a draft for a research note. The purpose is to sketch my basic idea for a network analysis approach (and potential integration of a quantitative discourse analysis). Some section still require conceptual and empirical development. Yet, the main lines of the argument should emerge. As I am still in the drafting process, all general and specific comments are very welcome.

Abstract

Treaty bodies of international human rights institutions within the United Nations are influential in monitoring, implementing and informally shaping new human rights norms. However, their legal mandates severely constrain such influence. What explains their remarkable power on human rights norm dynamics despite their uncoded norm-making power? Extant research suggests an actor-network hypothesis. Treaty bodies expand their law-making abilities through networks of experts that span local organizational boundaries. However, existing qualitative literature on norm development additionally suggests a discourse-network hypothesis. Translated to treaty bodies, this research proposes that their power stems not only from actor interactions but also from networked discourses that systematically structure actors' norm understandings, norm legitimacy, and affect norm diffusion. The paper examines these discourses through the citation network of non-binding general comments and recommendations linked to formal law-making in international and regional organizations. Using a dataset on references between binding and non-binding human rights documents, and employing social network analysis, it demonstrates that general comments and recommendations exert discourse power by connecting separate human rights debates and institutions. Consequently, General Comments have been assuming a discourse position that enables them to shape human rights discourses in the UN and beyond.

Keywords: Treaty Bodies, General Comments, Human Rights, United Nations, Discourse, Network

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1 Introduction

In 1992, the Committee on the Elimination of Discrimination against Women adopted its 19th general recommendation, which became the first official document that extends CEDAW to include violence against women.¹ The committee started adopting general guidelines interpreting the convention for all ratifiers six years earlier and this recommendation went on to gain much prominence in shifting the heretofore discrimination frame to an equality human rights framing (Bunch 1990; Choudhry 2016, p. 425). Over the past decades, the practice of United Nations treaty bodies to issue general comments or recommendations for all state parties to international human rights conventions has been gaining a lot of traction (Lesch and Reiners 2023). Fast forward to 2023, the Committee on the Convention of the Rights of the Child adopted an interpretation that closely links children’s rights with the challenging fight against the global environmental crisis.² This interpretation might as well become defining human rights interpretations for generations to come.

However, General Comment or Recommendation³ are a puzzle in the human rights work of the United Nations (UN): All major convention have been establishing treaty bodies either in the original text or via additional protocols to monitor treaty implementing, conduct inquiries into states’ misconduct (Lesch 2023a), and present an interlocutors for complaints (Ullmann and von Staden 2023; von Staden and Ullmann 2022). However, treaty bodies do not have a public mandate for updating official interpretations of conventions as new human rights challenges arise. In fact, in the legal UN human rights world, general comments do not exist; they are rather informal and non-binding interpretative documents that states are free to ignore. Yet, despite this limited mandate and severe resource constraints, treaty bodies have been investing a great amount of time and effort into amassing 180 general comments until 2023, and counting.⁴ As the examples above illustrate, this effort has left a mark on the global human rights discourse (Reiners 2021, 2024). UN treaty bodies not only shape global human rights discourse through their formally mandated procedures, but also through increasingly elaborated but legally non-binding discourse.

What explains their remarkable power on human rights norm dynamics despite their uncoded norm-making power? Extant research suggests an actor-network-hypothesis. Treaty bodies expand their law-making abilities through networks of experts that span local organizational boundaries (Lesch and Reiners 2023; Reiners 2021; Reiners and Kahn-Nisser 2024). In short, collaborations of actors within treaty bodies and beyond, such as professional and civil society communities, explain the influence in the law-making phase as well as its effectiveness. However, actor network might not be the only power vector shaping treaty bodies’ discursive influence. Related literature is increasingly aware of discursive network effects that structurally shape norm dynamics beyond actor influences (Giesen 2023; Holzscheiter 2025; Soares and Holzscheiter 2026).

In this paper, I examine the observed discursive power of UN General Comments with the emerging discourse-network-hypothesis. I build on an original data set that codes cross-references between

¹ CEDAW General recommendation No. 19 (10992): Violence against women.

² CRC/C/GC/26: General comment No. 26 (2023) on children’s rights and the environment with a special focus on climate change.

³ UN treaty bodies use both terms but denote the same instrument. The Committee on the Elimination of Racial Discrimination (CERD) and the Committee on the Elimination of Discrimination against Women (CEDAW) use the term ‘General Recommendation’, whereas all others use ‘General Comment’. This paper uses both terms interchangeably.

⁴ The data set for this paper is still under development and does not include the publication of the last 30 months.

global human rights documents (besides General Comments and Recommendations, international and regional conventions, resolutions, and declarations). I conceptualize General Comments' discursive power as a position within this emerging global cross-referencing network that brokers information flows between otherwise unconnected or weakly connected fields of the discourse and, in so doing, shortens interpretative connections between separate human rights fields. Building on insights from social network analysis, I leverage betweenness centrality as an insightful network measure to gauge the discursive power of treaty bodies' General Comments. The findings indicate that treaty bodies have been substantially expanding the scope and depth of General Comments over the past decades. As a result, the general population of General Comments has been assuming a significantly higher betweenness centrality in the officially documented intergovernmental human rights discourse than other types of documents such as UN General Assembly or Human Rights Council Resolutions, at least since the 2020s.

In this paper, I first develop the puzzle by detailing the established arguments in the literature and parallel empirical observations (Section 2). Next, I briefly sketch a theoretical framework to develop the proposed discourse-network hypothesis (Section 3). I detail my empirical strategy based on a social network analysis approach in the following section (4) and present the findings subsequently (Section 5). I discuss the findings and summarize the paper in the conclusion (Section 6).

2 Puzzle

Treaty bodies are a widespread institutional phenomenon in international organizations across all policy fields (Ulfstein 2020) and are most widely proliferated in the international human rights regime (Keller, Ulfstein, and Grover 2012), and in global environmental and finance politics (Giesen et al. 2025). In contrast to the other regimes, the UN-system organizes human rights treaty bodies not as plenary bodies, since the conventions provide for meetings of states parties to elect members of the treaty bodies and the UN General Assembly towers within the entire system to officially adopt new instruments, for example. Rather, UN human rights treaty bodies are specialized organizations staffed with independent experts with a fixed tenure and elected by member states (Carraro 2019).

Although specific bodies may vary, their mandates usually converge along three core functions: (1) examining individual state party reports on their treaty compliance (published as 'Concluding Observations'), (2) responding to complaints brought forward to treaty bodies by individual or groups claiming a treaty violation (published as 'Views'), and (3) adopting 'General Comments' or 'General Recommendations' that do not address a specific state party or situation, but reflect the bodies general, non-binding interpretation of one or several treaty provisions or the relationship between treaty provisions and specific human rights themes. (Keller and Grover 2012, pp. 116–117)

In contrast to the former two functions, General Comments and Recommendations are generally regarded as a quasi-legislative function, although they are legally non-binding for any state party and non-enforceable through judicial means (Takata and Hamamoto 2023). The Convention on the Elimination of All Forms of Racial Discrimination (CERD) is the first to establish such a permanent organizational body with these functions. However, the mandate expresses the function to adopt General Comments in the contemporary sense only indirectly. Specifically, article 9(2) stipulates:

“2. The Committee shall report annually, through the Secretary General, to the General Assembly of the United Nations on its activities and may make suggestions and general recommendations based on the examination of the reports and information received from the States Parties. Such suggestions and general recommendations shall be reported to the General Assembly together with comments, if any, from States Parties.”

More recent conventions mandate treaty bodies more explicitly, such as the provision for the Committee on the Rights of the Child (CRC) in article 45(d):

“(d) The Committee may make suggestions and general recommendations based on information received pursuant to articles 44 and 45 of the present Convention. Such suggestions and general recommendations shall be transmitted to any State Party concerned and reported to the General Assembly, together with comments, if any, from States Parties.”

With these mandates and the recognized quasi-legislative effects, the academic legal and international relations literature increasingly regards human rights treaty bodies as law-making actors (Lesch and Reiners 2023; Reiners 2021). Human rights treaty bodies leverage the practice of General Comments to either summarize views of the committee on present human rights challenges and interpretation (Rodley 2013) or translate existing views into new interpretations or synthesize related interpretations of neighboring human rights issues (Lesch 2023b).

However, the legal ambiguity and institutional formality surrounding their production and supporting organizational process present a lasting puzzle. The mandates enshrine a legal non-bindingness for state parties, which are free to dismiss any new treaty interpretations or developments they did not ratify (Keller and Ulfstein 2012, p. 4). In addition, limited financial and administrative resources regularly constrain the operations of the independent experts, preventing them from fully realizing the organizational potential of their system (Keller and Grover 2012, p. 168). These legal and institutional constraints challenge the assumed discursive power in the literature: what explains treaty bodies’ observed power on human rights norm dynamics despite their uncoded norm-making abilities?

The extant literature submits one line of argument that I term the ‘actor-network-hypothesis’. This literature focuses on the level of individual experts within the treaty bodies and identifies their personal network beyond the organization itself that embeds experts in boundary-spanning professional and civil society communities (Lesch and Reiners 2023; Reiners 2021). Essentially, the hypothesis argues that personal networks become a key institutional resource for organizational outputs under conditions of otherwise constrained organizational resources and available outside resources that can be transferred via collaboration (Lesch and Reiners 2023, pp. 384–388). These collaborations explain the influence in the law-making phase, such as the specific interpretation put forward in a General Comment, as well as its effectiveness, such as the acceptance by state parties or a changing norm interpretation in the general norm discourse (Lesch 2023b).

Conceptually, this approach understands organizations from an open system perspective and emphasizes interpersonal relationships as the main carriers of institutional boundary-spanning interactions (Reiners 2024). These carriers deploy across several organizational processes, including drafting and implementation phases (Reiners 2021). Crucially, this ‘actor-network-hypothesis’ is not limited to UN human rights treaty bodies, but generally extends to international human rights institutions (Davidson

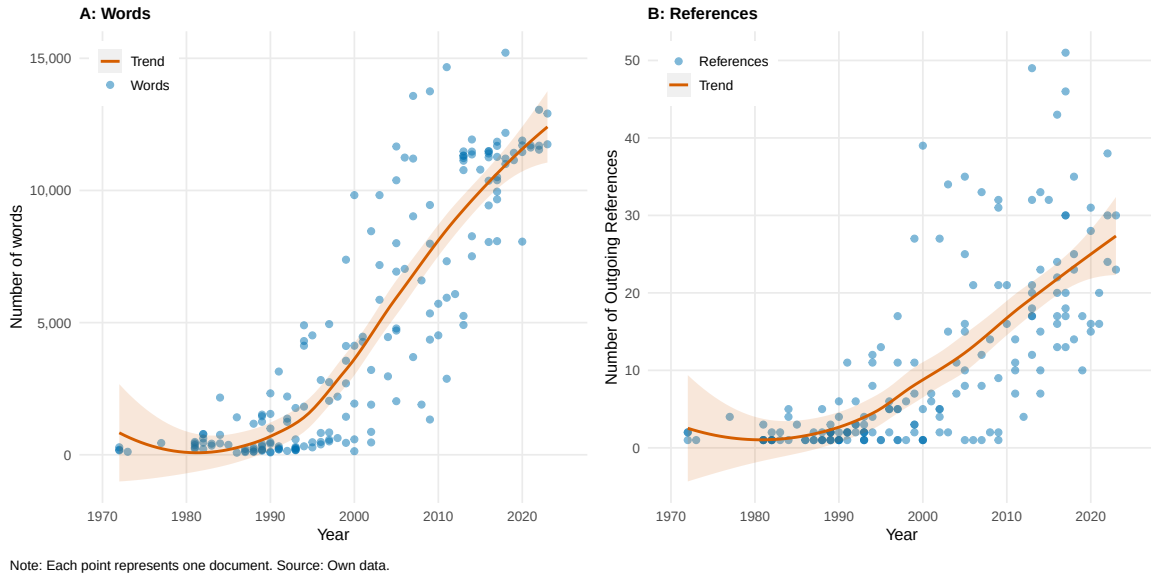


Fig. 1: Trends in General Comments and Recommendations over Time. Words and outgoing references have been systematically increasing over the past decades.

2022), and interactions in the creation and effectiveness of international organizations in the field of migration (Kortendiek 2021, 2024) and international trade (Block-Lieb and Halliday 2017).

The actor-network hypothesis has proven to be insightful in explaining the influence of informal law-making processes by human rights treaty bodies. However, closer empirical inspections of the discursive development of General Comments and Recommendations over the past years suggest an additional, complementary, and structural explanation. As Figure 1 illustrates, General Comments and Recommendations not only proliferated widely since at least the 1990s but also expanded in length and increasingly reference other human rights documents. In sum, these specific documents become more elaborated and rationalized in their interpretations and, at the same time, embed themselves more in the global human rights discourse. Thus, besides dynamic collaboration among actors involved in treaty bodies, their formal discourse shaping norm interpretations has likewise been shifting substantially.

This discursive dynamic suggests a complementary structural explanation for the remarkable influence of General Comments despite their legal powerlessness. This explanation is rooted in the power of the discursive position that General Comments have been assuming over time in the global human rights discourse. Although General Comments are legally non-binding, actors can attribute them a normatively powerful position, for example, by referencing their norm interpretations and adopting legally binding resolutions or conventions that build on previous General Comments. In contrast to the actor-network-hypothesis, I term this explanation the discourse-network hypothesis.

3 Discursive Network Power

The discourse-network-hypothesis understands norms not as isolated entities, but as entangled normative structures that are connected through formal and informal references (Fehl 2026; Winston

2018, 2023). Actors discursively evoke these norms by facilitating these references to existing norm interpretations, normative problem constellations, and solutions in a strategic manner. This generates norm clusters (Lantis and Wunderlich 2022; Wunderlich 2025) that vary in density of connections and let norms emerge in normative networks. The normative references that shape norm clusters not only ground norms' multi-dimensional structure, but also facilitate their interaction across institutional boundaries (Giesen 2023). In a nutshell, norms can not be observed as single entities but as relational normative structures that emerge discursively (Holzscheiter 2025). Actors evoke these normative configurations through informal references and materialize them in formal references, such as legal citations.

This norm understanding carries a relational ontology and emphasizes a productive power understanding of norms. This notion locates the agentic power of actors, such as treaty bodies, not in the organization itself, but in the discursive connection it generates beyond its organization (Pantzerhielm et al. 2020). In contrast to the actor-network-hypotheses, however, these connections do not extend to other actors, such as civil-society organizations, but to normative discourses that the organization is embedded in (Soares and Holzscheiter 2026). Translated to human rights treaty bodies, this approach explains their power not through their supporting actor network, but through their position and ability to shape their supporting norm discourse. This discourse can be understood as a network, and formal cross-references in General Comments are the symbols of the main power vectors treaty bodies can use to embed themselves in this discursive network.

Cross-references have become a common practice in modern international human rights documents (Mbengue 2006). Thus, they provide a unique access point to gauge normative structures of the emerging discourse network. Two types of referencing are crucial in understanding the emerging network dynamics: outgoing cross-references from General Comments and incoming, or receiving, cross-references when other documents address a General Comment. The first type of referencing is static, as the citations never change after the adoption of the General Comment. The second type of referencing is dynamic as new documents can refer to an existing General Comment. Thus, when a treaty body adopts a General Comment, it fixes its relationship to the existing human rights discourse. Over time after the adoption, new human rights documents are free to relate themselves to this document. As time passes, the General Comment finds itself entangled in a dynamic discourse network.

Grounding this analysis on the productive power approach of the discourse-network-hypothesis suggests that a General Comment can exert its influence in this network by obtaining a specific network position. It obtains this position by its outgoing cross-references but also through all its receiving cross-references over time. This specific position can be understood as a brokerage position that is able to shape neighboring nodes in a discourse network. Brokerage positions lie on paths between two other nodes in the network, which require this position to interact with each other (Wasserman and Faust 1994, pp. 188–198). In a brokerage position, a network node, such as a General Comment, can exert some control over the interaction of other participants in the network, for example, by shaping the contents of the interaction. In the context of human rights discourses, this might be a specific norm interpretation that connects other neighboring norm interpretations. Thus, this brokerage position

resembles a productive power understanding of norms in a larger discourse network. This implies the following observable implication:

Observable Implication: General Comments and Recommendations assume more discursive power, the higher their brokerage ability through formal cross-reference compared to other international human rights documents.

In terms of social network analysis, this (potential) brokerage position of General Comments can be captured by calculating its betweenness centrality. However, the general argument of the discourse-network-hypothesis does not relate to individual General Comments only, but to the entire population of all General Comments. Thus, the empirical strategy compares the aggregate measure of the entire General Comments population to the remaining discourse network.

4 Empirical Strategy

This paper builds on a data set of 180 General Comments and Recommendations adopted by nine UN treaty bodies from 1972-2023.⁵ It records the number and targets of outgoing references in each document, codes the field of human rights and additional meta data, and captures the comment's or recommendation's complete text including the total number of words. This data enables a quantitative overview of the discursive dynamics in General Comments and Recommendations over time (see Figure 1). In addition, the records on cross-references facilitate a network analysis by leveraging statistical analysis as well as visualization methods.

To contextualize this analysis, I include an additional data set that codes 1.022 international human rights documents that either reference General Comments and Recommendations, are referenced by them, or that are connected by cross-references more than one step away. However, the coding stops once a references targets a document clearly outside the human rights regime (such as the UNFCCC in the environmental regime). This data set likewise documents all outgoing and receiving references (citations) but not all textual data. The oldest document in this additional data set is the "International Agreement for the suppression of the 'White Slave Traffic'" (1904) and the newest documents include the General Comment No. 26 of the Committee on the Rights of the Child and General Comments No.1 of the Committee on Enforced Disappearances from 2023. The larger, additional data set provides contextual network information for all General Comments and Recommendations to calculate network measures based on the recorded patterns of cross-references across the larger international human rights regime⁶.

The crucial network measure for the purpose of this paper is betweenness centrality. Betweenness centrality measures the extent to which a document in a citation network lies on the shortest path between other documents (see Borgatti et al. 2018; Freeman 1977; Wasserman and Faust 1994). Let two documents be j and k . Geodesics are the shortest paths between j and k , and g_{jk} is the number of geodesics linking j and k . Second, let also be i a third document of the network that is likewise

⁵ The data set does not (yet) include the Subcommittee on Prevention of Torture and other Cruel, Inhuman or Degrading Treatment or Punishment (SPT) established through the Optional Protocol to the Convention against Torture which adopted its first General Comment in 2024.

⁶ I have not yet finished the coding. New documents should include general comments, resolutions and declarations since 2023 as well as peripheral documents cited by new ones.

connected through citations with j and k . Third, let $g_{jk}(n_i)$ be the number of geodesics linking j and k that also contain i . Thus, the probability that document i is included in the interaction between j and k can be estimated by $g_{jk}(n_i)/g_{jk}$. To generalize, the betweenness index for n_i is the sum of so estimated probabilities over all pairs of documents in the network not including document i :

$$C_B = \frac{\sum_{j < k} g_{jk}(n_i)}{g_{jk}} \quad (1)$$

$[j \neq k \neq i]$

This index is zero if *document* i finds itself on no geodesics – shortest paths between all other documents of the network – and reaches its highest value when i sits on all paths in the network. Thus, g is a factor in the index and can be standardized by including the sum of all paths among the organizations in the network except for i :

$$C'_B = \frac{C_B(n_i)}{[(g-1)(g-2)/2]} \quad (2)$$

$[j \neq k \neq i]$

The standardized index varies between 0 and 1, and makes comparisons across networks and (types of) relationships easy. Such standardization is crucial for the emerging citation network among international human rights documents since the network has been rapidly growing and values for (high) betweenness centrality should be likewise growing over time.

5 Findings

Comparing the average betweenness centrality of General Comments and Recommendations with all other international human rights documents supports the discourse-network hypothesis. Since 2020, the emerging plethora of General Comments and Recommendations has structurally assumed a brokerage position in the cross-reference network of the international human rights regime. Since then, their average estimated betweenness centrality is significantly higher than all other types of documents (see Figure 2). Thus, General Comments have been assuming a systematic brokerage position in the formal global human rights discourse network that could explain their influence, for example, in the development and promotion of new human rights interpretations.

Besides this general finding, the historic trajectory of treaty bodies' informal discourses is staggering. In the formation phase of practicing General Comments in the 1980s (Takata and Hamamoto 2023), treaty bodies' discourse played virtually no influential role in the discourse network. Even the discursively vibrant 1990s left no mark on General Comments' and Recommendations' position in the discourse. Developing this influential network position takes time. However, treaty bodies' effort to synthesize human rights interpretations planted the seeds for an emerging network position in the 2000s. By 2010, UN human rights treaty bodies amassed a comprehensive jurisprudence that put it on par with the average human rights discourse as it materializes in other documents such as UN General Assembly or Human Rights Committee resolutions or conventions. In about ten years, between 2005 and 2015, the average General Comment or Recommendation surpassed the betweenness centrality of other types of documents. This structural position has solidified over the past years.

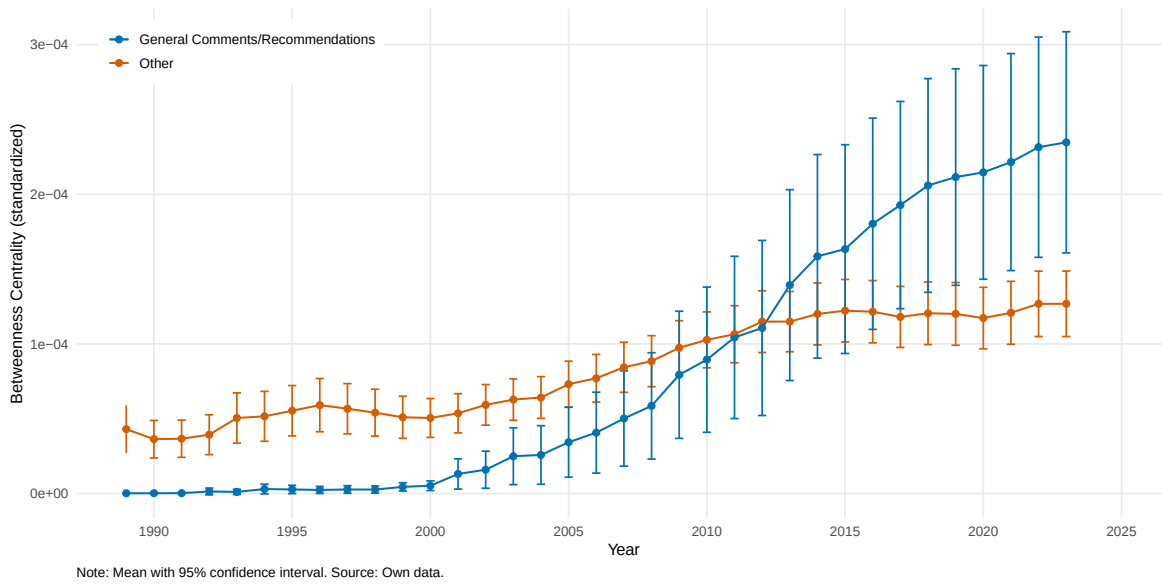


Fig. 2: Trends in Betweenness Centrality over Time. General Comments and Recommendations have been assuming stronger discursive bridging abilities within the global human corpus than other types of documents.

A closer look at the documents with the highest betweenness centrality details this assessment (see Table 1). Whereas in the 1990s international UN conventions dominated brokerage positions, several General Comments enter the list 20 years later. Notable are the three General Comments adopted by the Committee on Economic, Social and Cultural Rights. In 2023, this treaty body lists two more of its General Comments among the top ten documents. This suggests that norm interpretations of this treaty body can exert strong influences on norm interpretations in neighboring norms.

The quantitative assessment and the top ten ranking indicate that General Comments as a type of human rights documents can exert systematic influence in the discourse network. At the same time, the influence varies across several General Comments. To visualize the position and spectrum of potential discursive power, Figure 3 plots the entire discourse network at the end of the observation period in 2023. General Comments and Recommendations are triangular nodes, while all other nodes are plotted as circles. The colors denote separate sub-regimes in the human rights discourse, such as political rights, economic and cultural rights, or anti-discrimination rights. The size of each node indicates its betweenness centrality. General Comments populate large areas of the central core of the network. They are in positions to facilitate brokerage functions in multiple discourse niches and are widely positioned among other influential documents, such as those listed in Table 1, for example, the International Convention on the Protection of the Rights of All Migrant Workers and Members of Their Families (1990) – the light red circle in the upper-left corner.

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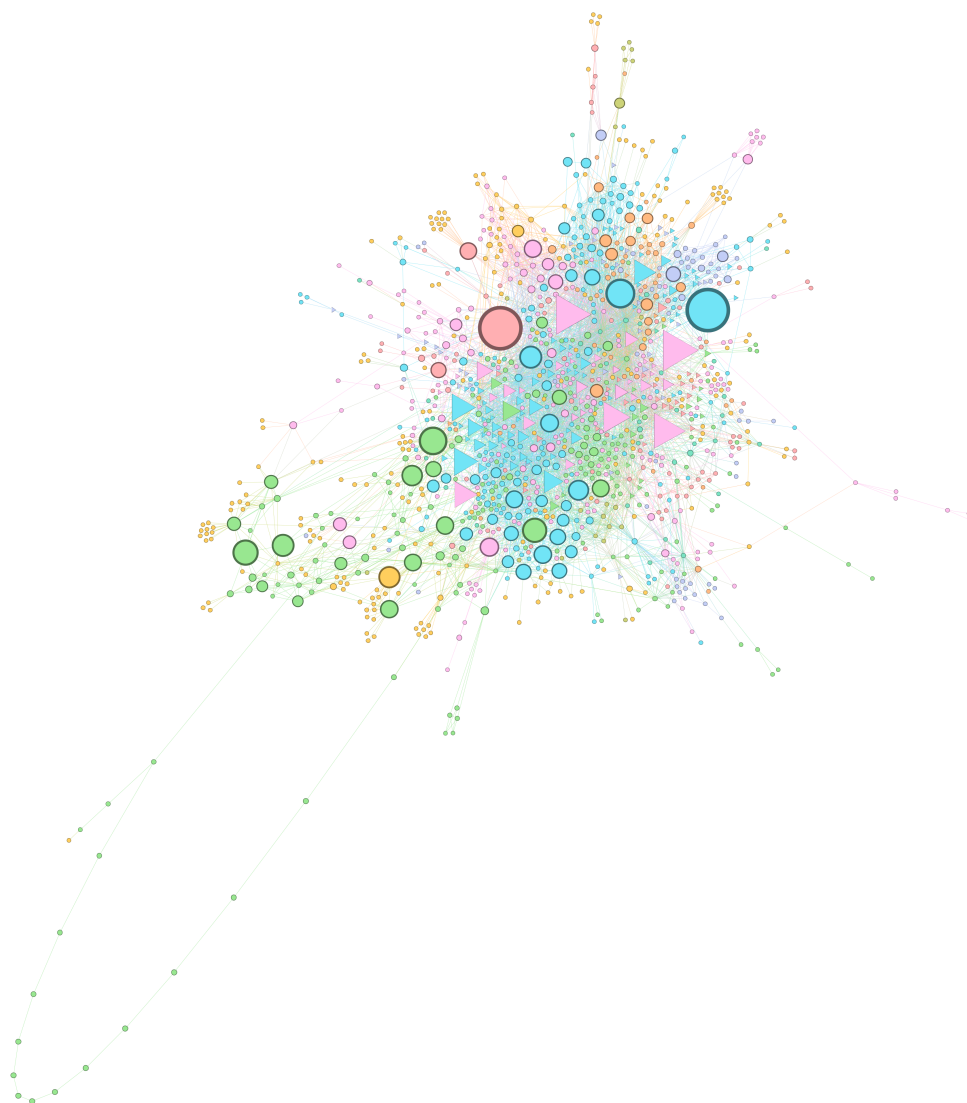


Fig. 3: Network of all Human Rights Documents in the Data Set: General Comments and Recommendations (triangles) assume often bridging positions among all other documents (circles).

Tab. 1: Top 10 Documents by Betweenness Centrality (Betweenness Centrality in brackets)

Rank	1990	2010	2023
1	UN1965IntConvElimRace (201.21)	UN1990IntConvMigWork (2520.402)	CoP2001Racism (5489.225)
2	UN1974ConvCrimeAparth (145.667)	EcoSoc1993-32 (1783.7)	UN1990IntConvMigWork (5482.436)
3	UN1968ConvNonAppWarCrime (128)	UN2002GenComCESCR15 (1676.265)	UN2002GenComCESCR15 (4678.01)
4	UN1979CEDAW (106.826)	UN1999GenComCESCR13 (1661.053)	UN2009GenComCESCR20 (4598.403)
5	UN1969DecSocProgDev (105)	UN1989CRC (1349.265)	UN2000GenComCESCR14 (4016.121)
6	UN1986Res41/129 (60)	UN2000GenComCESCR14 (1333.66)	UN1997HRCres74 (3493.378)
7	UN1989CRC (57.093)	UN1999Res54/149 (1302.093)	UN1999GenComCESCR13 (3349.56)
8	ILO1958DiscrimConv (50)	UN2001GenComCRC1 (1283.085)	EcoSoc2005-20 (3319.089)
9	UN1983Res38/14 (50)	UN1993DeclElimVAW (1257.514)	EcoSoc1993-32 (2999.296)
10	ILO1975MigWorkersSupp (49.733)	CoP2001Racism (1243.867)	UN2013GenComCRC14 (2993.022)

6 Conclusion

[...]

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